

INSTITUTE FOR
REFORMING GOVERNMENT

CENTER FOR INVESTIGATIVE OVERSIGHT

Agency Sunshine Report

Summary · Wisconsin Open Records, 2024–2026 · August 2026

Wisconsin set a 10-day records standard for itself in 2016. **Half its agencies no longer meet it.**

In April 2026, the Institute for Reforming Government (IRG) sent the same three-part request to 20 Wisconsin state agencies and constitutional offices. Each was asked for its own public records tracking log: the list every custodian keeps of who asked for what, and when the office answered. Ten offices produced a log complete enough to score. Those logs hold 55,604 requests filed between January 1, 2024 and April 22, 2026. Every figure below comes from an agency's own records, measured against a standard the State of Wisconsin wrote for itself.

THE SCORECARD

Rank	Agency	Requests logged	Median business days	Still open	Result
1	DFI	695	0	1.3%	Pass
2	DNR	17,831	1	0.3%	Pass
3	DSPS	1,091	1	0.4%	Pass
4	DOT	30,808	1	1.8%	Pass
5	WHEDA	188	6	10.1%	Fail
6	DHS	2,422	8	~28%	Fail
7	DCF	1,324	9	2.5%	Pass
8	DWD	782	14	2.7%	Fail
9	Office of the Governor	404	18	9.2%	Fail
10	Secretary of State	59	169	0%*	Fail

*Pass requires both a median of 10 business days or fewer and fewer than 10 percent of logged requests still open. WHEDA and DHS beat the 10-day median and fail on backlog. *The Secretary of State shows zero outstanding because it closes requests in batches; its older log puts routine certified-copy requests near 248 business days.*

DFI Financial Institutions · DNR Natural Resources · DSPS Safety and Professional Services · DOT Transportation · WHEDA Wisconsin Housing and Economic Development Authority · DHS Health Services · DCF Children and Families · DWD Workforce Development

WHAT THE LOGS SHOW

Volume and difficulty do not explain the spread. The Department of Transportation answers more records requests than every other agency in this study combined, 30,808 of them, and closes the typical request the next business day. Remove the State Patrol crash reports that make up 95 percent of that volume and the remaining 1,642 requests still close at a two-day median. The Secretary of State received 59 requests over the same period. Its median is 169 business days, and not one closed within 30. Its cover letter certifies that every 2024 and 2025 request was resolved “within a timeframe that was practicable and without delay.”

Four offices—the Secretary of State and the Departments of Workforce Development, Children and Families, and Transportation—told IRG they keep no record of how long they take. Each one then produced a log containing every date needed to calculate it.

The Office of the Governor is getting slower every year. Requests filed in 2024 closed at a median of 14 business days; 2025 requests took 24; requests filed so far in 2026 stand at 44, with 40 percent of them still pending. The office took 59 business days to answer a request about how quickly it answers requests, and it answered one of that request's three parts. It ranks ninth of 10.

Two agencies have produced nothing at all. The Department of Agriculture, Trade and Consumer Protection (DATCP) and the Department of Revenue have sent no records, no denial, and no fee estimate. As of August 6, 2026, that silence has run 76 business days, more than seven times the State's own benchmark. Wisconsin law gives a custodian two options: release the record or deny the request in writing. An office that does neither has not made a decision.

HOW WE GOT HERE

Wisconsin has had a public records law since 1917 and the modern version since 1983. It requires records to be produced “as soon as practicable and without delay,” and it sets no deadline.

Two executive orders filled that gap. Executive Order #189 (2016) and Executive Order #235 (2017), both signed by Governor Walker, directed agencies under the Governor's supervision to acknowledge every request within one business day, fill simple requests within 10 business days where practicable, track every request in a standard system, and post their response times on a public dashboard updated quarterly. The *Wisconsin State Journal* measured roughly a 30 percent improvement in the year that followed, and the non-partisan Wisconsin

Freedom of Information Council gave Governor Walker its 2018 award for political openness. The orders arrived after a difficult stretch for that administration: a July 2015 budget motion would have swept deliberative records out of the law before public objection killed it. A reform can be worth keeping and still have been prompted by embarrassment.

The dashboard was offline by February 2019. The current administration's stated position is that it follows the public records law and Department of Justice guidance, "not executive orders issued by prior administrations." No replacement standard has issued in the seven years since. The 10-business-day figure is the Department of Justice's own guidance for a simple request, and Attorney General Kaul recommends it today as Attorney General Schimel did before him.

THE FIX IS ALREADY RUNNING INSIDE STATE GOVERNMENT

Every practice this report recommends is in use today at a Wisconsin agency. The Department of Transportation never stopped running the tracking system built for Executive Order #189, down to a SharePoint address named "open-eo189." The Department of Veterans Affairs still publishes a page of pending requests, a quarterly performance dashboard, and a list of closed files, so any citizen can check its record without filing anything. The Office of the Commissioner of Insurance keeps a log that computes its own averages, and it volunteered that its 2026 figures are provisional because some requests remain open. DFI, DNR, DSPS, and DOT are meeting the standard right now.

WHAT SHOULD HAPPEN

- 1. Turn the standard back on.** The Governor should direct agencies to follow Executive Orders #189 and #235. Neither order was repealed. This requires no new authority, no new instrument, and no new money.
- 2. Failing that, legislative oversight.** The government operations committees should call the worst performers to account, and the Joint Legislative Audit Committee should direct the Legislative Audit Bureau to evaluate compliance statewide, using request-weighted response times rather than the flattering averages some agencies publish.
- 3. Codify the floor.** The Legislature should require every agency to keep a standardized log—date received, date acknowledged, date of final response, outcome, legal basis for any withholding, and fees—and to report its response times publicly each quarter.
- 4. Restore the requester's remedy.** Since the Wisconsin Supreme Court's 2022 decision in *Friends of Frame Park, U.A. v. City of Waukesha*, an authority that withholds records and releases them only once it is sued can leave the requester holding the legal bill. 2025 Assembly Bill 190 and 2025 Senate Bill 194 would have restored fee recovery. The bill passed the Senate, cleared committee nine to nothing, and drew no registered opposition. It died in the Assembly on March 23, 2026 without a floor vote.

WHAT YOU CAN DO

File your own request. Every Wisconsinite has the right. Templates are available from the Wisconsin Department of Justice Office of Open Government and the Wisconsin Freedom of Information Council. **Ask for the log.** When you file, also request the agency's tracking log, or ask why it does not keep one. Everything in this report came from exactly that kind of request. **Contact your legislators.** Ask them to support restoring the public dashboard and requiring standardized response-time reporting. **Share this report.** Sunlight only disinfects what it reaches.

THE BOTTOM LINE

This report asks one question: when a Wisconsinite requests a public record, does the government answer promptly, honestly, and on the same terms for everyone? Some agencies do, with the staff and budget they already have. Others make the public wait nearly a year and then certify, in writing, that nothing was delayed. Two will not answer at all. Behind every entry in these logs is a person: a journalist chasing taxpayer dollars, a small-business owner trying to make sense of a regulation, a parent checking how a case was handled. A year-long wait is a denial with a friendlier name.

Wisconsin met this standard within the last decade, and the offices at the top of this scorecard are meeting it today. The dashboard can be turned back on with an executive order and a spreadsheet. What is missing is the decision to do it.

ABOUT THIS REPORT

The Center for Investigative Oversight is the investigative arm of the Institute for Reforming Government. It exists to hold Wisconsin's government to the standards it has set for itself, and to give the public the tools to check the record without having to take the government's word for it. Government transparency is not a partisan cause, and this report does not treat it as one.

The full report contains the complete methodology, the stated limitations of every comparison drawn here, an agency-by-agency ranking with each office's own figures, and every citation. Read it at [CIO Agency Sunshine Report](#).

Source: each agency's own public records tracking log, produced to IRG under Wis. Stat. § 19.35, covering January 1, 2024, through April 22, 2026. Medians are pooled across all logged requests. Day counts for DATCP and the Department of Revenue are stated as of August 6, 2026.

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The [Institute for Reforming Government](#) is a non-profit 501(c)(3) organization that seeks to simplify government at every level by offering policy solutions to thought leaders in American government in the areas of tax reform, government inefficiency, and burdensome regulations.